

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING CERTAIN CHAPTERS AND SECTIONS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE BY REPEALING AND RE-ENACTING SECTION 17.80.080, SIGNS, OF CHAPTER 17.80, P PUBLIC DISTRICT.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That certain chapters and sections of Title 17, Zoning, of the Cheyenne City Code are hereby amended as set out in this ordinance by repealing and re-enacting Section 17.80.080, Signs, of Chapter 17.80, P Public District. Sections currently existing within Title 17, Zoning, and Chapter 17.80, P Public District, not set out within this ordinance remain unchanged.

Section 2. That Title 17, Zoning, Chapter 17.80, P Public District, Section 17.80.080, Signs, is hereby repealed and re-enacted to read as follows:

17.80.080 - Signs.

A. Definitions. For the purposes of this Section, the following term shall be defined as follows:

"Low-profile sign" means a sign built into or placed upon the ground by way of an ornamental structure that is not part of a building, and where the surface area of the structure does not exceed 50% of the sign area of the sign mounted upon it.

B. Signs are allowed in this district as follows:

- 1. Wall Signs up to 20% of the wall area, but no more than 400 square feet total.
- 2. One Projecting Sign per street frontage no greater than 32 square feet in area and projecting no more than 5 feet from the surface of the wall. A Projecting Sign shall have a clearance of at least 10 feet from the ground, and shall project no higher than the wall to which it is affixed.
- 3. One Freestanding or Low-profile Sign per street frontage or building complex as limited by the table below.

Table 1. Requirements for Freestanding and Low-Profile Signs in the P District				
	Freestanding Sign Limits		Low-Profile Sign Limits	
Distance from Right-of-Way (feet)	Maximum Height (feet)	Maximum Area (square feet)	Maximum Height (feet)	Maximum Area (square feet)
5 or less	10	20	8	40
5-10	12	30	8	60
10-15	14	40	10	70
15-20	16	50	12	80
20-25	18	60	12	90
Over 25	20	70	12	100

- 4. Advertising signs or banners at athletic fields with the approval of the director of parks and recreation.
- 5. A low- profile sign may include an Electronic Message Center in accordance with the following limitations:

- a. Electronic message centers may comprise up to 15% of the total allowed sign area. Electronic Message Centers for Entertainment Venues with greater than 1,000 seats may comprise up to 50% of the total allowed sign area.
- b. Message displays shall change a maximum of 3 times per 24-hour period
- c. No animation, video, or other non-static display shall be allowed.
- d. No blinking, intermittent, flashing or moving lights shall be allowed.
- e. Electronic message centers shall not increase the ambient lighting level by more than 0.3 foot candles when measured via a foot candle meter at any property line. Electronic message centers shall have a light-sensing device that adjusts the brightness as ambient light conditions change to conform to the requirements of this subsection.
- f. Electronic message centers shall not be constructed within 150 linear feet of the property line of a duplex, single family dwelling, or townhouse located in any of the following zone districts: LR-1, LR-2, MR-1, MR-2, or MUR.
- g. Transitions between messages shall be accomplished in 2 seconds or less by employing immediate, dissolve, or fade method.

Section 3. That this ordinance shall be in full force and effect upon its passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(S E A L) _____
RICHARD L. KAYSEN, MAYOR

ATTEST:

CAROL INTLEKOFER, CITY CLERK

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